

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

v.

Amentum Government Services Parent
Holdings LLC,

CLARENCE XANDER, JA'NICE HUGHES,
HEATHER GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and
YUSEF ABDUL-JAMI,

Defendants.

C.A. No.: 3:25-cv-01447-MCR-ZCB

REVISED THIRD AMENDED COMPLAINT

Plaintiff, Debra Nelson ("Plaintiff"), by and for her Third Amended Complaint against the above-named Defendants, alleges as follows:

I. INTRODUCTION

This action arises from unlawful employment practices by Defendant Amentum Government Services Parent Holdings LLC ("Amentum") and the individual Defendants named herein, including discrimination, retaliation, and other tortious acts.

II. JURISDICTION AND VENUE

This Court has jurisdiction under Title VII of the Civil Rights Act of 1964, 42 U.S.C. §2000e et seq., and 28 U.S.C. §1367, which provides supplemental jurisdiction over related state law claims. Venue is proper in this Court because the events giving rise to these claims occurred within this District.

III. PARTIES

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1. Plaintiff Debra Nelson is a resident of North Charleston, South Carolina.
2. Defendant Amentum Government Services Parent Holdings LLC is a federal defense contractor and an employer within the meaning of Title VII.
3. Defendants Clarence Xander, Ja'nice Hughes, Heather Gunn, Dakota Thomas, Elias Velasquez, and Yusef Abdul-Jami are named solely in connection with Plaintiff's state law causes of action (Counts IV–VIII). Plaintiff's Title VII claims (Counts I–III) are asserted only against Defendant Amentum.

IV. FACTUAL BACKGROUND

1. Plaintiff was employed by Amentum as a Non-Destructive Inspection (NDI) Technician in Milton, Florida. Plaintiff performed her duties with competence and dedication.
2. Plaintiff was subjected to gender-based discrimination, harassment, and retaliation after reporting safety, quality, and compliance violations to management.
3. Plaintiff's protected activity included complaints to supervision and management about noncompliance in turnover logs, locker inspections, and process control documentation.
4. Plaintiff reported that coworkers, including Yusef Abdul-Jami, failed to perform required tasks and falsified information in turnover logs. Management failed to act on these reports and instead retaliated against Plaintiff.
5. On May 29, 2025, Site Manager Clarence Xander instructed Plaintiff not to communicate with Abdul-Jami, despite the fact that the communication concerned legitimate work responsibilities.
6. Following this directive, Plaintiff experienced escalating retaliation and a hostile work environment, including attempts to discredit her professionally and interference with her job performance.
7. Plaintiff was forced to take medical leave beginning May 30, 2025, due to the stress and retaliatory conditions. She returned to work on July 2, 2025.
8. Upon her return, the retaliation continued, including being excluded from meetings, denied equal treatment, and falsely accused of misconduct.
9. On August 6, 2025, Plaintiff commenced a second medical leave due to continued retaliation and remains on leave as of October 24, 2025.

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10. Defendants' actions have caused Plaintiff severe emotional distress, reputational harm, and economic losses.

V. COUNTS

Count I – Gender Discrimination (Title VII – Amentum)

Defendant Amentum discriminated against Plaintiff on the basis of sex by treating her less favorably than similarly situated male employees in terms of job assignments, evaluations, and disciplinary actions. The discriminatory conduct violated Title VII of the Civil Rights Act of 1964.

Plaintiff experienced gender-based discrimination from Supervisors Dakota Thomas, Elias Velasquez and Site Manager Clarence Xander. Plaintiff's initial complaints about the uneven work load was ignored. Instead Supervisors Thomas and Velasquez harassed and tried to bully Plaintiff into continuing with the workload unbalance. Xander told Plaintiff not to contact Yusef Abdul-Jami anymore which would affect work related issues in the NDT department. This behavior from Supervision and Management could only be attributed to gender-based discrimination.

Count II – Retaliation (Title VII – Amentum)

Plaintiff engaged in protected activity by reporting discrimination, safety violations, and noncompliance. Defendant Amentum retaliated against Plaintiff through adverse employment actions, including isolation, denial of opportunities, and the creation of intolerable working conditions, in violation of Title VII.

Plaintiff was terminated on October 29, 2025 after being told that she needed to return to work. Plaintiff sent an email to the Union Representative, Jamie Littlefield and the Union Rep told Plaintiff that she needed to return to work before a step 3 meeting could be held. Plaintiff stated that after the first 30 day leave of absence a step 3 meeting did not occur. Plaintiff agreed to meet offsite to get resolution but the Union Rep. did not respond and then refused to accommodate Plaintiff's reasonable request. This ultimately led to Plaintiff's termination which was retaliatory in nature.

Count III – Hostile Work Environment (Title VII – Amentum)

Defendant Amentum subjected Plaintiff to a hostile and abusive work environment based on her gender and protected activity.

On May 28, 2025, coworker Elias Velasquez yelled and cursed at Plaintiff in the workplace, stating, "You don't need this f---ing s--- in here," in the presence of male employees. When Plaintiff reported the incident to Human Resources and Site Manager Clarence Xander, she was told that she "cursed too." When Plaintiff asked what she

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supposedly said, Xander responded, "It doesn't matter." Xander repeated that statement on **July 2, 2025**, again refusing to identify the alleged statement or witnesses.

Amentum later accepted Velasquez's false accusation that Plaintiff said, "Who the f--- do you think you are," and used it to justify disciplinary actions. Plaintiff was never allowed to see the written witness statements that management collected from the men involved.

The conduct of Velasquez and management's indifference created a gender-based, intimidating, and retaliatory environment that interfered with Plaintiff's ability to perform her job.

Defendant **Amentum Government Services Parent Holdings LLC**, through its supervisors and managers, permitted and perpetuated this conduct in violation of **Title VII of the Civil Rights Act of 1964**, thereby **stating a claim upon which relief can be granted**.

Count IV – Defamation (State Law – Velasquez and Thomas)

Plaintiff realleges and incorporates the preceding paragraphs.

Following Plaintiff's report of **Elias Velasquez's** profanity and harassment, Defendants began circulating false statements about Plaintiff's conduct. **Velasquez, Dakota Thomas, and Ja'nice Hughes** falsely alleged that Plaintiff took unauthorized leave from work. On or about **July 31–August 1, 2025**, Thomas stated during a disciplinary meeting that Velasquez "did not authorize Plaintiff's leave," despite Velasquez previously telling Plaintiff he would approve **July 31, 2025**, and that she needed to obtain administrative approval for **August 1, 2025**. Plaintiff spoke directly with Payroll, Tionne Thomas who approved the request.

Nevertheless, management—including **Thomas, Hughes, and Velasquez**—recorded and repeated the false claim that Plaintiff had taken unauthorized leave, and used that fabrication to justify disciplinary action. During the same meeting, **Heather Gunn**, Business Manager, sat silently and permitted the false accusations to proceed, thereby ratifying them.

Plaintiff was falsely accused of cursing at Velasquez on May 28, 2025. When she requested details, **Site Manager Clarence Xander** refused to identify the witnesses, saying repeatedly, "It doesn't matter." On **August 5, 2025**, Plaintiff was finally told she allegedly said, "Who the f--- do you think you are," which she never said.

These false statements were circulated among Amentum management, placed in Plaintiff's personnel file, and relied upon to damage her professional reputation and justify termination. Defendants acted with malice or reckless disregard for the truth.

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The foregoing conduct constitutes **Defamation under Florida law**, thereby **stating a claim upon which relief can be granted.**

Count V – Intentional Infliction of Emotional Distress (State Law – Xander, Hughes, Gunn, Thomas, Velasquez and Abdul-Jami)

Plaintiff realleges and incorporates the preceding paragraphs.

Defendants engaged in extreme and outrageous conduct by:

- Allowing **Velasquez** to curse at and demean Plaintiff and then falsely accuse her of cursing back;
- Fabricating claims that Plaintiff took unauthorized leave when Payroll had approved the time off;
- Conducting a disciplinary meeting in which **Thomas, Hughes, and Velasquez** repeated false accusations while **Gunn**, the Business Manager, remained silent and complicit;
- Refusing to provide Plaintiff with copies of the witness statements collected from male employees; and
- Using these falsehoods as a basis for discipline and eventual termination.

Clarence Xander repeatedly told Plaintiff “it doesn’t matter” when she tried to defend herself, demonstrating reckless disregard for the truth and Plaintiff’s well-being. These acts were intentional or, at minimum, reckless, and were calculated to cause severe emotional distress.

Plaintiff suffered humiliation, anxiety, sleeplessness, and emotional trauma as a direct result. The foregoing conduct constitutes **Intentional Infliction of Emotional Distress under Florida law**, thereby **stating a claim upon which relief can be granted.**

Count VI – Civil Conspiracy (State Law –Xander, Hughes, Gunn, Thomas, Velasquez and Abdul-Jami)

The individual Defendants combined for the purpose of injuring Plaintiff’s reputation and employment standing, committing overt acts in furtherance of that goal, causing Plaintiff actual damages.

All defendants in this case have conspired to make the workplace intolerable and unbearable to cause a constructive discharge. Plaintiff in good faith came to work to do her job to the best of her ability only to be met with no support from Supervisors, Thomas and Velasquez. There was no support from Site Manager Clarence Xander whose attitude

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towards my complaints were dismissive and unsupportive. Heather Gunn and Ja'Nice Hughes did not do anything to protect me from the retaliation or discrimination, in fact they participated in it.

Count VII – Negligent Supervision (State Law – Amentum)

Amentum knew or should have known of the individual Defendants' misconduct and failed to properly supervise, train, or discipline them, resulting in harm to Plaintiff.

Dakota Thomas, Elias Velasquez and Clarence Xander perpetuated gender-based discrimination and did everything to protect Yusef Abdul-Jami. Even with evidence ie. noncompliant process control logs, pictures of locker 2 and the text messages where Abdul-Jami stated that *he was not trying to do extra work, that he didn't care and anymore projects that I come up with in the future would be on me.*

Count VIII – Whistleblower Retaliation / Violation of Public Policy (State Law – Amentum, Xander, Hughes, Gunn, Thomas, Velasquez and Abdul-Jami)

Plaintiff engaged in protected activity by reporting violations of safety and quality requirements. Defendants retaliated against her for these protected disclosures in violation of Florida public policy and applicable whistleblower protections.

Plaintiff handed proof to Human Resources, Ja'nice Hughes that the Liquid Penetrant process logs were noncompliant, and Supervision and Management took no corrective action. Instead the retaliation against me continued. I spoke with Corporate about the issues that I was facing and nothing changed.

Count IX - Breach of Contract (Florida Law -Amentum, Xander, Hughes, Gunn)

Plaintiff realleges and incorporates by reference the preceding paragraphs.

Defendant **Amentum Government Services Parent Holdings LLC** and its managerial employees—**Clarence Xander (Program Manager)**, **Ja'nice Hughes (Human Resources)**, and **Heather Gunn (Business Manager)**—entered into and operated under written employment and labor agreements, including the **Collective Bargaining Agreement (CBA)** and Amentum's **Human Resources Policies**, which required compliance with progressive-discipline procedures, leave-of-absence protections, and anti-retaliation standards.

Plaintiff fully performed her obligations and remained on approved leave when Defendants:

- **Xander** issued a termination letter falsely citing “unauthorized absence”;
- **Hughes** failed to record and maintain Plaintiff's approved medical leave; and
- **Gunn** altered or approved time records contrary to company policy.

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Additionally, the Union's failure to act after receiving Plaintiff's written request for representation (*Exhibit G*) violated the grievance procedures incorporated into the Collective Bargaining Agreement. This non-response deprived Plaintiff of the contractual right to representation and remedy and further constitutes a breach of contract under Florida law.

These acts breached Amentum's contractual promises of fair treatment and adherence to written procedures, directly causing Plaintiff's loss of employment on October 29, 2025, wages, benefits, and related damages.

The foregoing conduct constitutes **Breach of Contract under Florida law**, thereby **stating a claim upon which relief can be granted.**

Count X – Wrongful Termination (Florida Law – Amentum, Xander, Hughes, Gunn, and Thomas)

Plaintiff realleges and incorporates the preceding paragraphs.

On **October 29, 2025**, Defendant **Amentum Government Services Parent Holdings LLC**, acting through **Clarence Xander, Ja'nicé Hughes, Heather Gunn, and Dakota Thomas**, terminated Plaintiff's employment under false pretenses, citing "unauthorized absence." The stated reason was pretextual and contradicted Amentum's own records, which showed that Plaintiff obtained prior approval from **Elias Velasquez** for July 31, 2025, and from **Payroll** for August 1, 2025.

Plaintiff's termination occurred less than twenty-four hours after she testified in a federal deposition in *Nelson v. Curtiss-Wright*, in which she described similar discriminatory and retaliatory conduct. The timing and circumstances of the termination demonstrate that Defendants acted with retaliatory and discriminatory motive.

Defendants' actions violated Florida's **public policy prohibiting termination for engaging in protected activity**, including opposing unlawful employment practices and reporting safety and compliance violations at a federal installation. The termination further violated **Florida's Whistleblower Act, Fla. Stat. § 448.101 et seq.**, and the anti-retaliation provisions of **Title VII**.

As a direct and proximate result, Plaintiff suffered loss of employment, wages, benefits, emotional distress, and reputational harm.

The foregoing conduct constitutes **Wrongful Termination in Violation of Public Policy under Florida law**, thereby **stating a claim upon which relief can be granted.**

VI. DAMAGES

Plaintiff has suffered lost wages, emotional distress, reputational harm, and other compensatory damages. Lost wages include:

First leave (May 30 – July 1, 2025) at \$45.46/hour × 184 hours = \$8,364.64

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Second leave (August 7 – October 28, 2025) at \$45.46/hour × 488 hours = \$22,184.48
Total wage loss to date: \$30,549.12 (excluding lost overtime, benefits, and retirement contributions).

VII. PRAYER FOR RELIEF

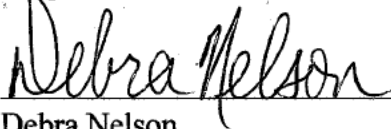
WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- A. For compensatory damages, including back pay, front pay, and benefits;
- B. For damages for emotional distress and reputational harm;
- C. For punitive damages where permitted by law;
- D. For costs, interest, and reasonable attorneys' fees; and
- E. For such other and further relief as the Court deems just and proper.

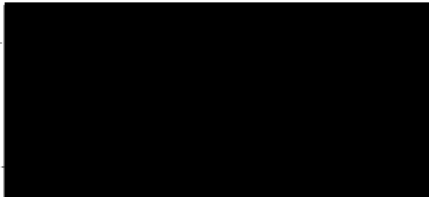
EXHIBITS INDEX

- Exhibit A – Formal Complaint (Gender-Based Mischaracterization)
- Exhibit B – Request for Formal Investigation
- Exhibit C – Impact Statement
- Exhibit D – Timeline of Events
- Exhibit E – Termination Letter (Oct 29 2025 12:02 p.m.)
- Exhibit F – Email from Attorney Lindsay Swiger (12:52 p.m.)
- Exhibit G - Email to Union Representative (Request for Representation and Grievance Assistance Oct. 16, 2025)

Respectfully submitted 3rd of November, 2025,



Debra Nelson
Plaintiff, Pro Se



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CERTIFICATE OF SERVICE

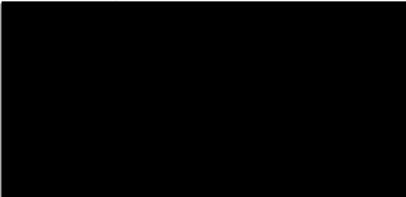
I hereby certify that a true and correct copy of the foregoing **Plaintiff's Revised Third Amended Complaint**, together with the attached was served upon counsel for Defendants by [☐ U.S. Mail / ☐ Email] addressed as follows:

Lindsay D. Swiger
Zackary A Blanton
Jackson Lewis P.C.
501 Riverside Avenue, Suite 902
Jacksonville, FL 32202
Email: Lindsay.Swiger@jacksonlewis.com
Zackary.Blanton@jacksonlewis.com

Respectfully submitted, 3rd of November, 2025,



Debra Nelson
Plaintiff, Pro Se



Debra Nelson
2718 Crestline Drive
North Charleston, SC 29405

U.S. District Courthouse
Clerk of Court
One North Palafox Street
Pensacola, FL 32502

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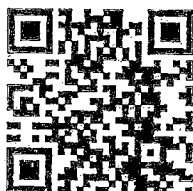
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Special Handling/Fragile \$	Sunday/Holiday Premium Fee \$	Total Postage & Fees 33.0	
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EXHIBIT A

Subject: Formal Complaint – Gender-Based Mischaracterization and Retaliatory Conduct

May 30, 2025

Dear HR Representative Janice Hughes and Union Representative James Carnley,

I am formally submitting this complaint regarding inappropriate and discriminatory conduct directed at me by management, specifically related to how I was characterized when advocating for myself in the workplace.

During a recent meeting, after I raised valid concerns about workload distribution and a supervisor's inappropriate behavior, I was labeled as having an "attitude" and being "aggressive." These labels were used by Clarence Xander in response to my efforts to speak up about the lack of support from my coworker, the use of profanity by a supervisor, and the fact that I was being unfairly held accountable for shared responsibilities.

I want to make it clear that my behavior was professional and focused on defending my rights and boundaries. These descriptors — "aggressive," "attitude," etc. — are often weaponized against women in professional settings to silence or undermine them when they assert themselves. In this context, I believe they reflect **gender-based bias**, and I am concerned that this language was used to discredit my valid concerns and shift blame onto me.

Further, this mischaracterization appears to be **retaliatory**, given that I raised prior concerns about the locker assignment, provided evidence of my efforts, and asked what would be done about a supervisor cursing at me. I asked the Manager directly what would be done about it. The Manager dismissed my concern by saying: "**That doesn't matter right now.**" Rather than addressing those issues, the focus was redirected toward attacking my character.

I am requesting the following:

1. A formal review of the conduct and comments made by Clarence Xander and others present in the meeting.
2. A review of whether gender-based bias or double standards influenced how I was treated.
3. Clarity on how the company defines and applies terms like "aggressive" and "attitude," and whether those standards are being applied fairly across all employees.
4. Documentation of this complaint in my employee file and reassurance that no retaliation will result from my decision to speak out.

I would like to meet with both HR and union representation to discuss how this situation will be addressed.

Please confirm receipt of this complaint and advise on the next steps.

EXHIBIT A

Sincerely,

A handwritten signature in cursive script that reads "Debra Nelson".

Debra Nelson

NDI Technician/ Work Center 520



EXHIBIT B

Subject: Follow-Up to Leave of Absence Notice – Request for Formal Investigation

May 30, 2025

Dear HR Representative Janice Hughes and Union Representative James Carnley,

This message is a follow-up to the email I sent to my manager on May 29, 2025, in which I informed them that I will be taking a leave of absence effective May 30, 2025. I cited the workplace as not being a safe space for women — a conclusion I have reached after repeated incidents of unprofessional conduct, gender-based disregard, and failure by management to appropriately address my concerns.

As outlined in my prior communication, these are not isolated experiences. The recent locker project situation, and the way I was treated during the subsequent meeting — including being cursed at by a supervisor and unfairly accused of “aggressive” behavior for asserting my responsibilities — further highlight a toxic pattern. This, combined with the lack of support or intervention from my union representative during that meeting, has left me with no choice but to step away from the environment for the sake of my mental and emotional well-being.

When I brought up the fact that a supervisor **cursed at me** in a hostile and unprofessional manner, I asked the Manager directly what would be done about it. The Manager dismissed my concern by saying: **“That doesn’t matter right now.”**

After I submitted the text messages to management — which clearly documented my coworker’s refusal to complete assigned work and my repeated attempts to involve him — the Site Manager told me that I was no longer allowed to text my coworker.

I believe this directive was retaliatory and designed to protect my coworker from further documentation of his neglect, rather than to resolve any interpersonal conflict or improve communication. It effectively punished me for providing valid evidence and further limited my ability to coordinate work-related tasks.

This response shows a clear **pattern of management suppressing my voice**, protecting male coworkers from accountability, and creating an **environment where I am penalized for following procedures, speaking up, and doing the work.**

I am formally requesting:

- A thorough and unbiased investigation into my complaints, including potential violations of workplace safety, respect, and equity policies;
- A review of management’s handling of interpersonal conflicts and accountability;
- Assurance that future conduct and expectations will align with a safe, respectful, and equitable workplace for all employees — including women.

EXHIBIT B

Please confirm receipt of this message and provide next steps regarding how this investigation will proceed. I remain open to dialogue and resolution, but I must insist that these concerns are taken seriously and addressed with transparency.

Sincerely,



Debra Nelson

NDI Technician/Work Center 520



EXHIBIT C

Impact Statement – Emotional and Mental Health Effects

Over the past several weeks, I have experienced escalating verbal abuse, exploitation, and disrespect in my workplace — both from a coworker and from multiple members of management. Despite my efforts to maintain professionalism and complete my assigned duties, I was repeatedly ignored, burdened with excessive work, and blamed for responsibilities that were not mine alone.

After raising concerns and defending myself against false accusations, I was met with hostility, cursed at by a supervisor, and later falsely accused of misconduct. Instead of being supported or protected, I was labeled “aggressive” and accused of having an “attitude” — language often used to discredit women in the workplace.

The moment I was told “that doesn’t matter right now” after reporting verbal abuse by a supervisor marked a clear signal that my well-being was not valued. It confirmed that my concerns would not be taken seriously, no matter how professionally I raised them.

After I submitted the text messages to management — which clearly documented my coworker’s refusal to complete assigned work and my repeated attempts to involve him — the Site Manager told me that I was no longer allowed to text my coworker.

I believe this directive was retaliatory and designed to protect my coworker from further documentation of his neglect, rather than to resolve any interpersonal conflict or improve communication. It effectively punished me for providing valid evidence and further limited my ability to coordinate work-related tasks.

This response shows a clear **pattern of management suppressing my voice**, protecting male coworkers from accountability, and creating an **environment where I am penalized for following procedures, speaking up, and doing the work**.

This lack of support — combined with repeated mistreatment and unjust scrutiny — created an **emotionally unsafe and psychologically damaging** work environment. It was a key factor in my decision to take leave, and I am now pursuing **short-term disability** because of the emotional and mental toll.

These events have left me feeling **emotionally unsafe, psychologically overwhelmed, and unsupported** by the very people who are meant to enforce fairness and accountability. I now experience:

- **Constant stress and anxiety** related to work interactions
- **Sleep disturbances**
- **Panic and dread** about returning to a hostile environment

EXHIBIT C

- A deep sense of **injustice and powerlessness**, especially when defending myself leads to further retaliation

As a result, I have made the decision to take a leave of absence effective May 30, 2025, and am actively pursuing a short-term disability claim on the recommendation of my healthcare provider. This is no longer a safe or healthy environment for me, and my mental health has significantly deteriorated due to this mistreatment.

Respectfully Submitted June 2, 2025,



Debra Nelson

NDI Technician / Work Center 520



EXHIBIT D**Timeline of Events**

May 28 – I was called into a meeting in the equipment room at 2:25pm 5 minutes before my shift ended. I told Elias that my shift was ending and he could talk to Yusef who was standing right next to him. In the meeting was the second shift Maintenance Supervisor, Elias Valasquez, Union Representative, Jimmy Murphy; first shift Maintenance Supervisor, Dakota Thomas, NDI Technician, Yusef Abdul-Jami and myself. In the meeting I was being questioned about the contents of locker 2, I said that Yusef is standing right there and pointed at him. Elias said “you don’t have to have an attitude and you don’t need this fucking shit in here”. I told Elias you don’t need to curse at me and he had no right to be cursing me. The other men that were in the room said nothing. Elias dismissed what I said and continued to ask me if I needed to keep certain parts in the locker. I continued to say Yusef is right here why aren’t you asking him because he was responsible for locker 2. Elias said that we could keep the spare parts in the Tool Room. I said that’s not how NDI works. We usually keep spare parts along with our other equipment. Elias then said that we can just keep these extra probes in the Tool Room and Dakota agreed. I then said “I would consult with the NDI Level III if I were you”. Elias said I’m not doing nothing we just going to put those probes in the Tool Room and Dakota agreed. After the meeting I immediately went over to HR to report the Supervisor cursing at me.

May 29 – In a meeting with James Carnley, Chief Union Steward; Janice Hughes, HR Generalist; Heather Gunn, Business Manager; Clarence Xander, Site Manager; Dakota Thomas, Maintenance Supervisor and myself. In the meeting we discussed Elias cursing at me. I discussed the locker issue and Yusef not keeping up with the process control in the NDI program. I told them that process control has not been in compliance since the previous NDI Technician left. I told them that airplanes inspected without the process control being done prior to the inspection could get the company fined. I was told by Clarence Xander that I was not to text Yusef anymore. I was told by Clarence that my response to Yusef was aggressive, and I was told I had an attitude. There was absolutely no discipline or accountability for Yusef not pulling his share of the workload. I left that meeting knowing that management was covering for Yusef and somehow, I was made the bad guy in this situation. I was not supported in that meeting and in the workload situation.

May 30 – My leave of absence began. On May 30th I tried to log in to Costpoint to sign my time for the week. I was locked out and Payroll already went home. I would have to contact Payroll on Monday to get my password reset.

June 2 – I contacted the Payroll Generalist to reset my password. When I went into my time I noticed times were moved around. I asked Tionne about it and she said that I had PTO. I said we talked about this last week and you said I didn’t have any PTO left. Tionne said Heather Gunn signed my time on Friday May 30th. I told Tionne she didn’t have to do that and I didn’t give her permission to go into my time. Heather moved my hours around from the previous week. I asked

EXHIBIT D

Tionne to reopen my time so I could put the correct hours where they belong. I believe Heather was trying to set me up for stealing time.

July 2 - When I returned from my leave of absence I had a meeting with James Carnley, Chief Union Steward; Heather Gunn, Business Manager; Clarence Xander, Site Manager; Dakota Thomas, Supervisor and myself. In this meeting Clarence stated he didn't know I was coming back on that day. I clearly stated in my leave of absence paperwork and to Corporate that I would be coming back on July 2nd after all discrepancies within the NDI program were corrected. When I got back the broken probe was still in the kit and there were a few other items that were not in compliance. In the meeting I asked Clarence about the statement that I cursed at a Supervisor and Clarence said "it didn't matter". I asked him what was the issue and why wouldn't he tell me what I was accused of saying and Clarence said again "it didn't matter". I told Clarence that was defamation. Clarence then said he wanted to end the meeting.

July 24 - I did a 6300 hour eddy current inspection on drain holes on aircraft 037 over in the Phase hangar. I signed the job off after the inspection in the Phase hangar.

July 25 - I messaged Dakota letting him know I was running late. Dakota then asked what time I thought I would get to work and I said about 2:55pm. Dakota then said that we will meet on Tuesday July 29th at 2pm. I asked what this meeting was about and Dakota said about a work order that was signed off and he had some questions. I asked what work order and Dakota said it would be discussed on Tuesday.

When I got to work, I logged on to see if I had any work in the queue. I noticed the aircraft and job I did the night before was still in the queue. When I opened up the job the corrective action was blank. So I went to Phase to see what the issue was. I spoke with the 2nd shift Lead, Tom Beauman and asked what was up with aircraft 037 and Tom said that the aircraft was not ready for the 6300 hour inspection I did the night before because it wasn't defueled. Tom said there were panels that also needed to be removed, and I was supposed to inspect the drain holes from the inside after all that was done. I said I didn't realize that and I asked when it will be ready. Tom said that wouldn't happen that night because there was other maintenance that needed to be completed. Tom said that when he saw that I had signed it off he realized that was a mistake because he did that same thing last month (June) with the other NDI Tech Yusef. Tom said when the aircraft is ready they would call NDI. I went back to Hangar 100 and told Shop Lead 100-200, Phillips the status on aircraft 037.

July 29 - At the 2pm meeting in attendance was Supervisor, Dakota Thomas; Business Manager, Heather Gunn; HR Representative, Janice Hughes; Elias Valasquez, 2nd shift Supervisor; Union Chief Steward, James Carnley and me. So, Dakota started the meeting asking what happened with the 6300 hour inspection. I said, "so this is what we're doing"? I said the same thing happened last month with Yusef. Did you call the Business Manager and the HR Representative for him? Dakota said he didn't know anything about that. I repeated what the 2nd shift Phase Lead Tom Beauman told me. Dakota said "well I'll have to look into that". Dakota didn't sound like he believed me.

EXHIBIT D

Which has been a consistent pattern since May when I reported Yusef for not helping with the locker. That meeting was supposed to be Dakota's opportunity to write me up to try and create a paper trail. Since he didn't know that I knew that Yusef did the same thing he was unable to accomplish that goal.

August 4 – I returned to work and saw that Yusef put a note in the turnover log stating that the cable that I said was broken worked before I used it and it worked after I used it. This is false because I checked that cable and used other probes to verify the issue. Even with other probes the cable still did not work. I 100% stand behind what I said, **the cable was broken**. Yusef in order to deflect to get the attention off of himself and try to discredit me, tells Supervision the cable worked, and they believed him. Yusef had a bag with cables in them that I personally saw. After I reported him for not helping with the locker, he said he didn't know what happened to the bag.

When I brought the issue up with Elias and told him that Yusef switched that cable out with the broken one and was trying to discredit me. Elias immediately jumped to Yusef's defense, which is not uncommon, and said that the cable worked. I told Elias that the cable did not work and that Yusef switched it out. Elias then says to me that I have an attitude, he has to talk to me like I'm a child, then he says go ahead and do the report cause I'm going to look stupid and everybody has a problem with me. I told Elias that he is starting to piss me off because y'all always act like I don't know what I'm talking about. This is the incredibly hostile environment that I am subjected to. Everything I say is dismissed if it's contrary to my male counterpart. The gender-based characterizations used to minimize my concerns all of this creates a hostile work environment.

August 5 - After repeatedly asking since May 30, I was finally informed by Corporate that I had been accused of saying, "Who the fuck do you think you are." I **categorically deny making this statement**. While I may curse in casual conversation, I have never cursed **at a supervisor** or used language in that tone or phrasing. That statement is **not consistent with how I speak** — it does not reflect my vernacular, and I would never address management in such a manner. The phrasing sounds more like something a Caucasian person would say, I am Black and the language attributed to me feels intentionally mischaracterized. Despite my repeated efforts to clarify this issue, Corporate **refused to tell me who made the accusation**, leaving me defenseless against a false and discriminatory claim. This concealment has added to my emotional distress and demonstrates continued bad faith by management.

August 6 - Dakota Thomas along with the HR Rep Janice Hughes and the Business Manager Heather Gunn issued me a written reprimand after the 2 complaints that I filed on August 4th & 5th. The reprimand was for an unauthorized absence. I requested time off for a court date on July 31st. I told my Supervisor Elias Valasquez on July 29th that I didn't have enough time to be off for both days and Elias said I'll approve the time that you have off but you will have to go upstairs. I went on July 30th and talked to the Payroll Specialist Tionne. I told her that I needed to be off Thursday and Friday July 31st and August 1st but I didn't have enough time. She said I would need to use my personal time and then use unauthorized leave. I said ok because I've done it many times

EXHIBIT D

before. However, in the meeting on August 6th I was told that Elias did not approve my leave and that I told Tionne my time was authorized. At no point did anyone tell me that I had to talk to the HR Rep to take unauthorized time off because I didn't have to do it before. If my leave was not approved as Elias said then why was that not communicated to me verbally, by text or email. I was being set up to fabricate a write up.

EXHIBIT E



October 29, 2025

Debra Nelson



Subject: Notice of Termination

In accordance with the Company's Human Resources Policy AM-HRS-PL-0309-LA, titled Professional Conduct (made available to you on the Company's Intranet), and IAW Exhibit B – Progressive Discipline Guide of the applicable CBA, Rule #5d unauthorized absence for three consecutive work shifts, this memorandum serves as notification you are being terminated effective today, October 29, 2025, for unauthorized absence for three consecutive work shifts.

As previously mentioned, you have been out on leave of absence since August 8, 2025. You were notified on September 10, 2025, that Hartford denied your Short-Term Disability and FMLA claim. Additionally, you were also notified that the WC claim you filed on September 12, 2025, was denied by our third-party vendor, Sedgwick, on October 14, 2025. Given the outcomes of these claims and the necessity of your attendance for your role to perform the essential functions of your position, as it would be an undue hardship to allow you to remain on leave indefinitely, you were notified on October 17, 2025, that you were required to return to work on October 20, 2025. You failed to report to work as instructed for your shift, and were sent a follow-up email on October 20, 2025, advising that if you failed to report to work by Wednesday, October 22, 2025, additional discipline up to and including termination would be taken.

Your final paycheck through October 29, 2025, and information on your benefit continuance will be forwarded to your home address. Please contact the Human Resource office at 850-484-6250 if you have questions.

Regards,

Clarence
Xander

Digitally signed by Clarence Xander,
DN: cn=Clarence Xander, o=T34/T6,
ou=Amentum,
email=clarence.xander@amentum.com
Reason: I am approving this document

Clarence Xander
Program Manager

Enclosure: Benefits Continuation Letter
CC: Personnel File

EXHIBIT F



Outlook

RE: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

From Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>

Date Wed 10/29/2025 3:52 PM

To Debra Nelson <[REDACTED]>

Cc Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>

Good afternoon Ms. Nelson:

The Court has docketed your Motion for Leave to File Third Amended Complaint. Defendants' deadline to respond to the Motion is November 10.

In your email below, you stated that the Third Amended Complaint will be fully self-contained and will specify which claims are asserted against which defendants. To date, we have not received a revised draft of the Third Amended Complaint which meets these criteria. We request that you provide a revised draft of the proposed Third Amended Complaint for our review as soon as possible.

Based on the proposed Third Amended Complaint that was filed with your Motion, we have no choice but to oppose the Motion because it is not clear what claims are being asserted, what allegations are asserted in support of the claims, and which claims are asserted against which defendants.

We are available to discuss this further at your convenience.

Thank you,
Lindsay



Lindsay D. Swiger
Attorney at Law

Jackson Lewis P.C.

501 Riverside Ave

Suite 902

Jacksonville, FL 32202

Direct: (904) 638-2657 | Main: (904) 638-2655 | Mobile: (904) 703-3411

Lindsay.Swiger@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson <[REDACTED]>

Sent: Wednesday, October 22, 2025 10:35 PM

To: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>

Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>; Jacksonville Docketing <JacksonvilleDocketing@jacksonlewis.com>; Herrera, Janet (Orlando) <Janet.Herrera@jacksonlewis.com>

Subject: Re: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Dear Ms. Swiger,

EXHIBIT F

Thank you for your email.

I do not oppose Defendants' request for an extension of time to respond until the Court rules on my Motion for Leave to File the Third Amended Complaint.

The Third Amended Complaint will be fully self-contained and will specify which claims are asserted against which defendants.

Thank you for confirming that future service emails should copy Ms. Herrera and the Jacksonville Docketing address.

Sincerely,
Debra Nelson

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From: Debra Nelson <[REDACTED]>
Sent: Wednesday, October 22, 2025 10:27:33 PM
To: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>
Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>; Jacksonville Docketing <JacksonvilleDocketing@jacksonlewis.com>; Herrera, Janet (Orlando) <Janet.Herrera@jacksonlewis.com>
Subject: Re: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Who are these other people on this email thread

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From: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>
Sent: Wednesday, October 22, 2025 12:42:12 PM
To: Debra Nelson <denelson62@outlook.com>
Cc: Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>; Jacksonville Docketing <JacksonvilleDocketing@jacksonlewis.com>; Herrera, Janet (Orlando) <Janet.Herrera@jacksonlewis.com>
Subject: RE: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Dear Ms. Nelson:

We are in receipt of Plaintiff's Motion for Leave to File Third Amended Complaint. We will discuss this matter with the Defendants and let you know our clients' position on the Motion. At the very least, the Third Amended Complaint should include all allegations within the document, rather than reference other unspecified complaints, and it should clearly identify which claims are pled against which defendants.

As we discussed yesterday, the Defendants intend to file a motion for extension of time to respond to the Second Amended Complaint because the deadline for certain of the Defendants to respond to the Second Amended Complaint is October 27, 2025. If the Court grants your motion for leave to file a Third Amended Complaint, there is no reason for the Defendants to respond to the Second Amended Complaint because it will no longer be in effect. For this reason, the Defendants intend to file a motion to extend the Defendants' deadline to respond to the operative pleading until the Court rules on your motion for leave to file a Third Amended Complaint. Please let us know if you oppose or agree to this request for an extension of time so we can notify the Court of your position.

We are available to discuss this further at your convenience.

EXHIBIT F

Additionally, we request that you copy Janet Herrera and Jacksonville Docketing (both copied here) on future service emails.

Thank you,
Lindsay



Lindsay D. Swiger
Attorney at Law

Jackson Lewis P.C.

501 Riverside Ave
Suite 902

Jacksonville, FL 32202

Direct: (904) 638-2657 | Main: (904) 638-2655 | Mobile: (904) 703-3411

Lindsay.Swiger@jacksonlewis.com | www.jacksonlewis.com

From: Debra Nelson <[REDACTED]>
Sent: Wednesday, October 22, 2025 9:56 AM
To: Swiger, Lindsay Dennis (Jacksonville) <Lindsay.Swiger@jacksonlewis.com>; Blanton, Zackary A. (Jacksonville) <Zackary.Blanton@jacksonlewis.com>
Subject: Nelson v. Amentum, Case No. 3:25-cv-01447-MCR-ZCB

Courtesy Copy – Motion for Leave to File Third Amended Complaint

Dear Ms. Swiger and Mr. Blanton,

Attached please find a courtesy copy of my Motion for Leave to File Third Amended Complaint and the proposed Third Amended Complaint that was filed with the Court today in ***Nelson v. Amentum Government Services Parent Holdings LLC, et al.***, Case No. 3:25-cv-01447-MCR-ZCB (N.D. Fla.).

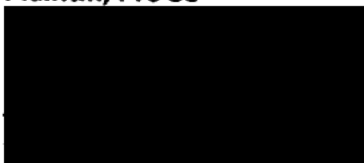
This filing clarifies that:

- The Title VII claims (Counts I–III) are directed solely at Amentum Government Services Parent Holdings LLC, and
- The state-law claims (Counts IV–VIII) are asserted against the individual defendants.

I have included you both on this message for notice and record purposes.

A hard-copy filing has also been sent to the Clerk of Court via USPS Priority Mail Express for docketing. Tracking number ER223548396US

Respectfully,
Debra Nelson
Plaintiff, Pro Se





Outlook

Re: Clarification Request – Step 3 Grievance Meeting

From Debra Nelson <[REDACTED]>
Date Thu 10/16/2025 12:40 PM
To Jamie Littlefield <jlittlefield@iam75.org>
Cc james Carnley <hs11oo@hotmail.com>

I want to be clear that I am in the local area and available to meet, but I am not returning to the worksite while on medical leave because of the hostile conditions that remain unresolved.

So is this the representation that I paid for?

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From: Debra Nelson <[REDACTED]>
Sent: Thursday, October 16, 2025 11:37:24 AM
To: Jamie Littlefield <jlittlefield@iam75.org>
Cc: james Carnley <hs11oo@hotmail.com>
Subject: Re: Clarification Request – Step 3 Grievance Meeting

Dear Mr. Littlefield,

Thank you for your reply. I am currently on an extended leave of absence that was necessitated by the hostile work environment I experienced at Amentum. I am in the local area and am available to meet in person at a neutral location or to participate by video or phone conference.

As I noted earlier, I already returned to work for more than thirty (30) days after my first leave, yet no Step 3 meeting was scheduled during that time. Requiring me to physically return to the same workplace before the grievance can proceed would place me back into the conditions that led to my leave of absence and would be inconsistent with both my health needs and my right to a safe work environment.

Please confirm whether District 75 will accommodate a meeting at a neutral site or via remote participation so that this matter can move forward.

Thank you,
Debra Nelson

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From: Jamie Littlefield <jlittlefield@iam75.org>
Sent: Thursday, October 16, 2025 9:00:46 AM

EXHIBIT G

To: Debra Nelson <[REDACTED]>
Cc: james Carnley <hs11oo@hotmail.com>
Subject: Re: Clarification Request – Step 3 Grievance Meeting

Are you back to work? If so I will set it up as soon as possible.

Thank you,

Jamie R. Littlefield

ADBR

IAMAW District 75

jlittlefield@iam75.org

334-400-6386

On Thu, Oct 16, 2025 at 7:24 AM Debra Nelson <[REDACTED]> wrote:

Dear Mr. Littlefield,

I am following up regarding my Step 3 grievance meeting. I understand from prior communications that the Union believes I must return to work before this meeting can be scheduled.

As you are aware, I returned to work after my first medical leave and remained for more than thirty (30) days. During that period, no Step 3 meeting was ever scheduled. I am now on a second extended medical leave due to continued hostility and retaliatory conduct in the workplace.

I am willing to participate in the Step 3 meeting by video conference or at a neutral location to ensure my safety and to move the grievance process forward. Please confirm within seven (7) calendar days whether District 75 will accommodate this request or provide its position in writing.

I appreciate the assistance provided by our local steward, James Carnley, who has been supportive throughout this process. However, I have not received a response to my previous emails to your office dated August 6, 2025 and October 2, 2025.

Thank you for your time and attention.

Sincerely,
Debra Nelson

[REDACTED]

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